

24NNCV05951 24NNCV05951

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-16

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Case Number: 24NNCV05951 Hearing Date: July 16, 2026 Dept: E

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The Court's tentative is to

DENY the motion for trial preference.

The brain-mapping and [x]

attached to the Marchiondo declaration are from 8/25/23 and 6/7/24, approximately two and three years ago respectively. The Court wonders why these documents are being attached to a motion for trial preference in July of 2026. Were they not available to the plaintiff at least two years ago? This case was filed on 11/20/24. At that time, the plaintiff was 79 or 80 years old, and the plaintiff could have made this motion. Why didn't the plaintiff move for trial preference prior to the original case management conference when trial dates were set?

Further, there is no note

from any physician regarding the plaintiff's ability to participate in a trial. Plaintiff's counsel may have her own conclusions about the medical evidence, but she is not, unless the Court is mistaken, a medical doctor. A note explaining some kind of acceleration of symptoms or deterioration from a physician would be more illuminating than an attorney's declaration attaching years-old medical records.

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